

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Hanley	Team: Squad #01	CCRB Case #: 201701496	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/25/2017 3:35 AM	Location of Incident: Bushwick Avenue and Aberdeen Street	18 Mo. SOL 8/25/2018	Precinct: 83
Date/Time CV Reported Sat, 02/25/2017 5:54 AM	CV Reported At: Other City agency	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 02/25/2017 5:54 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Andrei Pahom	13722	961990	TB DT33
2. POM Daniel Pietranico	08439	929487	TB DT33

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ryan Mennor	21397	959815	TB DT33

Officer(s)	Allegation	Investigator Recommendation
A . POM Daniel Pietranico	Abuse: Police Officer Daniel Pietranico threatened to issue a summons to § 87(2)(b)	A . Exonerated
B . POM Daniel Pietranico	Abuse: Police Officer Daniel Pietranico refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Andrei Pahom	Force: Police Officer Andrei Pahom used physical force against § 87(2)(b)	C . Exonerated

Case Summary

On February 25, 2017, § 87(2)(b) filed this complaint with 311 via email. It was referred to the CCRB on the same date.

On February 25, 2017, at approximately 3:35 AM, § 87(2)(b) was going home alone from a birthday party in Manhattan on the L subway. He was heavily intoxicated and fell asleep on the train, awaking at the Bushwick Avenue and Aberdeen Street station in Brooklyn. He had to urinate so exited the train and went behind a black dumpster on the platform in order to do so. § 87(2)(b) did not see anyone on the platform at the time. As he walked up the stairs to exit the platform, he encountered PO Daniel Pietranico, PO Ryan Mennor, and PO Andrei Pahom of Transit Bureau District 33.

The officers took him back to the spot where he had urinated prior, and requested his identification. PO Mennor told him that he had exposed himself and they had a job to protect people. PO Pietranico issued § 87(2)(b) a summons for § 87(2)(b). As PO Pietranico prepared the summons, § 87(2)(b) started crying. § 87(2)(b) asked the officers to be understanding as he was drunk and lost. PO Pietranico allegedly told § 87(2)(b) that if he did not stop crying he would be issued a second summons (**Allegation A**). § 87(2)(b) asked for the officers' names and shield numbers. PO Mennor and PO Pahom both provided their names and shield numbers but PO Pietranico allegedly ignored the request and continued writing § 87(2)(b) the summons (**Allegation B**). The officers told § 87(2)(b) how to get back to the Myrtle Avenue subway stop he was looking for and told him to follow them.

The officers entered the same train § 87(2)(b) entered, in an adjacent car. § 87(2)(b) was upset at how the officers had spoken to him. § 87(2)(b) resolved to confront the officers and at the next stop, got on the subway car the officers were on. He approached PO Mennor within a few inches of his face and stared at him. PO Pahom allegedly pushed § 87(2)(b) hard by his shoulder and told him to back off (**Allegation C**). § 87(2)(b) did not move, and when the train reached Myrtle Avenue, PO Pietranico and PO Pahom grabbed § 87(2)(b) one on either side by the arms, and walked him out of the train. § 87(2)(b) attempted to re-enter the subway car but the doors closed. The officers did not step out of the train and § 87(2)(b) went home.

§ 87(2)(b) was issued a summons for § 87(2)(b). No arrest was made. The investigation was unable to obtain video footage as no surveillance cameras are installed at the location according to the MTA.

Mediation, Civil and Criminal Histories

- § 87(2)(b), § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
- No notice of claim has been filed with the NYC Comptroller's office as of July 11, 2017.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint.

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- PO Pietranico has been a member of service for 15 years. He has five prior cases with a total of 10 prior allegations. He has three prior allegations of refusal to provide his name and shield. In CCRB# 200401479, an allegation of refusal to provide name and shield number was substantiated against PO Pietranico and instructions were imposed by the NYPD. In CCRB# 200506363 and CCRB# 201506180, allegations of refusal to provide name and shield were closed as complainant unavailable and complainant uncooperative respectively.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Daniel Pietranico threatened to issue a summons to § 87(2)(b)

It is undisputed that § 87(2)(b) was publically urinating on the southbound “L” train platform and was stopped by PO Pietranico, PO Mennor, and PO Pahom. PO Pietranico issued him one summons § 87(2)(b) and informed § 87(2)(b) that he could have received an additional summons.

§ 87(2)(b) stated that after stopping him, an officer asked for his identification and he told officers he had been holding his urine as long as he could and did not have anywhere else to go (Board Review 01). PO Mennor told him that he had publically exposed himself and they (the officers) had to protect women and anyone from seeing him urinating in public. § 87(2)(b) began to cry and asked “Why are you doing this to me.” PO Mennor responded that officers had a job to do. PO Pietranico asked § 87(2)(b) why he was crying, told him it was not a big deal, and to stop crying or he would receive another summons. PO Pietranico did not elaborate as to what else § 87(2)(b) would have been issued a summons for and did not issue any additional summonses.

PO Pietranico stated that he explained to § 87(2)(b) that he could not urinate in public, and began preparing a summons (Board Review 02). As he wrote the summons and performed a warrant check, § 87(2)(b) became irate, stating that officers wanted to shoot him and issue him multiple summonses. PO Pietranico informed § 87(2)(b) that he could have been issued additional summonses but would only be issued one. PO Pietranico believed § 87(2)(b) could have been issued summonses for public exposure and inappropriate use of the facilities.

PO Mennor stated that he told § 87(2)(b) that he could not have his penis exposed on the platform as there were other people waiting at the station (Board Review 03). As PO Pietranico ran a warrant check, § 87(2)(b) became visibly upset. PO Pietranico informed § 87(2)(b) that he could have been issued multiple summonses but only was being issued one. § 87(2)(b) threw his hands up yelling that officers wanted to shoot him and PO Pietranico informed him that he was only receiving a minor summons even though he could have received additional summonses. PO Mennor did not recall if PO Pietranico elaborated on what those summonses could have been. PO Mennor believed § 87(2)(b) could have been issued summonses for public exposure and disorderly conduct for his yelling on the platform.

PO Pahom stated that § 87(2)(b) began crying and yelled that officers wanted to shoot him when told he would be issued a summons (Board Review 04). PO Pietranico informed him that

he could have been issued other summonses but would not be. PO Pahom believed § 87(2)(b) could have been issued a summons for disorderly conduct.

According to NY S Penal Law § 245.01: “Exposure of a person. A person is guilty of exposure if he appears in a public place in such a manner that the private or intimate parts of his body are unclothed or exposed.” (Board Review 05)

§ 87(2)(g)
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§ 87(2)(g) it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B- Abuse of Authority: Police Officer Daniel Pietranico refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated he asked the officers for their names and shield numbers at least twice as PO Pietranico wrote his summons. § 87(2)(b) was specifically speaking to PO Mennor and PO Pietranico. § 87(2)(b) repeated this request twice. PO Mennor’s name and shield number was openly displayed on his uniform and PO Pahom stated “Of course” and pointed towards his name and shield number on his chest. PO Pietranico, still writing the summons, did not respond. PO Pietranico’s jacket lapel was covering two digits of the shield number and § 87(2)(b) approached him, putting his arm forward and extending his fingers in order to uncover the hidden digits. PO Pahom pulled § 87(2)(b)’s hand away. Later in the L train, § 87(2)(b) stated he began repeating PO Mennor’s name and shield number as he stood by PO Mennor.

PO Pietranico stated that as he prepared § 87(2)(b)’s summons, § 87(2)(b) began repeating the names and shield numbers of PO Mennor and himself out loud. § 87(2)(b) approached PO Pietranico, coming within a foot of PO Pietranico before PO Mennor told § 87(2)(b) not to get close to him or touch him. PO Pietranico was focused on writing the summons and not paying attention to where § 87(2)(b) was or whether § 87(2)(b) touched his jacket. PO Pietranico did not hear § 87(2)(b) ask for the names and shields of any officer but stated that his name and shield were openly displayed on his uniform jacket and hat.

PO Mennor stated that after being informed he would receive a summons, § 87(2)(b) immediately asked PO Pietranico for his name and shield number. PO Pietranico indicated on his uniform, displaying his name and shield. PO Mennor stated § 87(2)(b) continuously repeated his (PO Mennor) and PO Pietranico’s names and shield numbers out loud and then immediately requested their names and shield numbers again. § 87(2)(b) complained that officers were not giving him their names and shield numbers and approached PO Pietranico with a hand up, apparently to touch PO Pietranico’s shield. PO Mennor put his hands up to block § 87(2)(b) from touching PO Pietranico’s shield.

PO Pahom stated that as § 87(2)(b) was being prepared a summons, he began screaming for PO Mennor and PO Pietranico to give him their name and shield numbers. PO Pahom did not recall PO Mennor responding to § 87(2)(b)’s request, but stated that PO Pietranico told § 87(2)(b) he would respond when he finished writing the summons. PO Pietranico’s name and shield number

were displayed on his uniform. § 87(2)(b) approached PO Pietranico and attempted to touch his shield and an officer told § 87(2)(b) not to touch PO Pietranico. § 87(2)(b) began loudly repeating PO Pietranico and PO Mennor's names and shield numbers.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C- Force: Police Officer Andrei Pahom used physical force against § 87(2)(b)

It is undisputed that after § 87(2)(b) was issued the summons, he was directed to the north bound L train by officers and followed them onto the train upon its arrival. Initially in a separate car, § 87(2)(b) got onto the same car as the officers and stood directly in front of PO Mennor and stared at him. He was told to step away but refused to move until the train approached the Myrtle Avenue stop. § 87(2)(b) then stepped off the train. § 87(2)(g)

§ 87(2)(b) stated that he entered the train car the officers were on and approached PO Mennor, standing within a few inches of his face. § 87(2)(b) said nothing and stared at PO Mennor and then repeated PO Mennor's shield number and name. PO Pahom, standing directly to the right of PO Mennor, pushed § 87(2)(b) away by his shoulders, instructing him to step away and back off. § 87(2)(b) described this shove as forceful enough to move him away but not knock him off his feet. § 87(2)(b) held onto one of the poles in the train in order to keep himself from moving. At the Myrtle Avenue stop, PO Pietranico and PO Pahom grabbed § 87(2)(b) by each arm and escorted him off the train.

PO Pahom stated that § 87(2)(b) got on the same train as officers and approached PO Mennor, estimating the distance between them at four to five inches. PO Pahom told § 87(2)(b) to back up but denied making any physical contact with § 87(2)(b). § 87(2)(b) got off the train at Myrtle Avenue voluntarily.

PO Mennor stated that § 87(2)(b) got within 2 inches of his (PO Mennor's) face on the train. § 87(2)(b) stated "You guys are going to take me home" and attempted to touch PO Mennor's right arm. PO Mennor put up his left hand to stop § 87(2)(b) from getting any closer. PO Mennor instructed § 87(2)(b) to back up multiple times but did not recall whether or not PO Pahom also instructed § 87(2)(b) to back up. PO Mennor stated no officer made physical contact with § 87(2)(b) on the train. § 87(2)(b) left the train voluntarily.

PO Pietranico corroborated PO Pahom and PO Mennor's account of the incident, only stating that he did not recall any officer making physical contact with § 87(2)(b).

According to Patrol Guide procedure 221-01, a police officer is permitted to use force when reasonable to ensure the safety of members of service (Board Review 06).

§ 87(2)(g)

. Therefore it is recommended that
Allegation C be closed as **exonerated**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date